

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit on the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to login, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

May 22, 2026

#	Case Name	Tentative
1.	Noria vs. Mason Reconstruction LLC 25-01498751	Motion to Be Relieved as Counsel of Record The motion of attorney Joshua White of Laurel Employment Law to withdraw as attorney of record for Plaintiff Eduardo Noria is DENIED WITHOUT PREJUDICE. Mr. White failed to file proof of service of the motion on his client Plaintiff Eduardo Noria prior to the continued hearing on this matter. Therefore, the motion is DENIED WITHOUT PREJUDICE. Clerk to give notice.

2.	Salinas vs. Bazoft Automotive 23-01352644	Motion to Be Relieved as Counsel of Record The motions by Anthony Chavos, Laurie Rau, Chavos & Rau APLC, to withdraw as counsel for defendants Bazoft Automotive d/b/a South Coast Mitsubishi, Nissan Extended Service Corporation, Inc., and Sentry Select Insurance Company, are DENIED WITHOUT PREJUDICE. The original hearings on the instant motions were continued on 3-19-26, as moving counsel's original declarations did not sufficiently state grounds for withdrawal, and the originally provided proposed orders were blank. (ROA 130 [3-19-26 minute order].) Moving counsel were ordered to file and serve any supplemental papers by 5-1-26, including supplemental declarations and "completed proposed orders." (<i>Id.</i>) The supplemental papers were eventually filed and served on 5-4-26. Moving counsel's supplemental declarations (ROA 136, 137, 139) now sufficiently state grounds for withdrawal. However, the new proposed orders (ROA 141, 142, 143) are still incomplete; ¶¶ 2, 3, 5, and 6 are still blank. In particular, ¶ 6 is necessary in order for the parties to have proper addresses for service on the clients in the future, if withdrawal is granted. (Cal. Rules of Court, Rule 3.1362, subds. (d), (e) [proposed order required].) As moving counsel failed to timely and properly comply with the court's prior order, the motions are DENIED WITHOUT PREJUDICE. Clerk shall give notice.
3.	Guzman-Leal vs. General Motors, LLC 23-01357484	Motion for Attorney Fees Plaintiff's Motion for Attorney fees is GRANTED. Defendant General Motors, LLC shall pay <u>\$36,671.50</u> in reasonable attorney fees and <u>\$4,298.15</u> in costs and expenses to Plaintiff. (See Code Civ. Proc., §1033.5, subd. (a)(10)(B) [statutory attorney fees]; Civ. Code §1794, subd. (d) [Song-Beverly attorney fees]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 [lodestar; trial court's discretion]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same]; Wood Decl. ¶¶ 7-11 [description of services performed]; 12-20 [justification for hourly rates sought], 22-23 [timekeeping procedures]; and Ex. 6 [timekeeping records].)

The attorney fee award consists of the reasonably expended hours of work at the reasonable hourly rates sought by the following timekeepers: NOTE: The below INCLUDES the time spent preparing the reply brief and preparing for the hearing.

<u>Timekeeper</u>	<u>Role</u>	<u>Rate</u>	<u>Hours</u>	<u>Total</u>
Jessica Anvar	Senior Partner	\$595	0.3	\$178.50
Carey Wood	Senior Partner	\$560	55.4	\$31,024.00
Sean Crandall	Partner	\$530	0.7	\$371.00
Bobby C. Walker	Associate	\$440	3.6	\$1,584.00
Laura Schwartz	Associate	\$430	2.8	\$1,204.00
Jessica Caro	Paralegal	\$100	1.7	\$170.00
Robert Aguilar	Paralegal	\$100	12.6	\$1,260.00
Elaine Astroga	Paralegal	\$100	6.1	\$610.00
Silvia Martinez	Paralegal	\$100	1.8	\$180.00
Isabel Garcia	Paralegal	\$100	0.9	\$90.00

85.9 \$36,671.50

Plaintiff has adequately established a basis for the reasonableness of the hourly fees requested for the attorney timekeepers by providing evidence of each timekeeper's experience and qualifications and reference to rates charged by other lemon law attorneys in the Orange County market. Plaintiffs have sufficiently established that the requested hourly rates of counsel are reasonable and commensurate with what other similarly tenured and experienced attorneys could charge in the Orange County market.

Plaintiff has not provided any facts that justify the requested \$215 hourly rate for the team of litigation paralegals who participated in this case. The Court reduces the hourly rate for each paralegal timekeeper to \$100/hour which the court finds to be commensurate with a reasonable hourly rate for basic litigation paralegal work in this market.

Additionally, the court has reviewed the timekeeping records provided and finds that the hours claimed were reasonably incurred.

Defendant's opposition does not show that the claimed hourly rates or hours spent are unreasonable. Defendant argues that Plaintiff's counsel has adapted work product that has been used in other similar

		cases, but it appears to this Court from Moving Party’s time records that the number of hours spent litigating this matter take into account the efficiencies of adapting prior applicable work product to the litigation of this case. The court declines to award a multiplier. (See <i>Ketchum v. Moses</i> (2001) 24 Cal.4th 1122, 1138 [trial court discretion to award multiplier].) This was a standard lemon law case. Counsel’s skill and contingency risk are reflected in the reasonable hourly rates described above. The OSC re: Dismissal (Settled Case) currently scheduled for June 8, 2026, in Department C65 is CONTINUED to Monday August 10, 2026, at 1:30 pm. in Department C65. This continuance is to allow time for the attorney’s fees ordered in this ruling to be paid. Plaintiff shall give notice of this ruling.
4.	Armstrong Cal Builders, Inc. vs. Trinity Fence Company 25-01481008	Motion - Other (Declaration of Rights to Withheld Funds, Under Cal. Civ. Code § 9408) Plaintiff Armstrong Cal Builders, Inc.’s petition for order declaring the respective parties’ rights as to a stop notice in dispute or reducing the amount of the stop notice and the amounts withheld from a stop notice that was served by Respondent Trinity Fence Company is denied without prejudice on procedural grounds. Although the “petition” acknowledges the hearing must be held within 15 days of the filing of the petition (see petition, page 8, line 20), Armstrong made no effort to obtain a hearing within that time frame. The court’s record indicates the current hearing date of May 22, 2026, was assigned without objection by Armstrong. There was no ex parte application or any other effort to obtain a hearing within the statutory time limitation of 15 days. Furthermore, the Court is not satisfied on the present record that the withheld stop-payment notice funds should be released or reduced through this summary procedure. Material, factual and procedural disputes remain. These include issues related to service of the affidavit, timeliness of the counter-affidavit, the operative pleadings required by Civil Code section 9410, payments allegedly made to or on behalf of Trinity, disputed back charges, and the reasonable value of Trinity’s work. These issues are not sufficiently and firmly

		established in this Court's mind to warrant release or reduction of the withheld funds at this time. Trinity's request for attorney fees is denied without prejudice as premature. Plaintiff Armstrong to give notice.
5.	Palacios vs. FCA US, LLC. 25-01464074	Motion to Compel Production Plaintiff Yereli Palacios' Motion to Compel Compliance with CCP § 871.26(h) is CONTINUED to August 7, 2026, at 9:30 a.m. in Department C12. Prior to filing a discovery motion, a "meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040(a).) Here, Plaintiff failed to meet and confer <i>prior</i> to filing the motion. Therefore, the hearing is continued to allow the parties to engage in a meaningful meet and confer. The Court disagrees with Plaintiff's position that no meet and confer is required in this context. The parties/counsel are ORDERED to engage in additional attempts to meet and confer <i>in person, telephonically, or over remote videoconferences (not email)</i> by June 26, 2026. The parties/counsel are ORDERED to file a JOINT STATUS REPORT indicating whether court intervention remains the only option to resolve this discovery dispute, and if so, why. This Joint Status Report shall be filed by July 24, 2026. Clerk to give notice of this ruling.
6.	Rodriguez vs. Melo 25-01470408	Motion to Set Aside/Vacate Default Defendant Manuel Rivera Melo's motion to set aside default and/or default judgment pursuant to CCP section 473.5 is CONTINUED to July 10, 2026, at 9:30 a.m. in Department C12. At this time, there is no proof of service of the moving papers (i.e., the notice of motion and motion, memorandum of points and authorities, declaration, and all other supporting papers) on plaintiffs Virginia

		Rodriguez and Pablo Rodriguez’s counsel of record at Glotzer & Leib LLP. The moving papers must be served on all parties who have appeared in the action. (See Code Civ. Proc., §§ 1005, subd. (b) [“all moving and supporting papers shall be served and filed at least 16 court days before the hearing”], 1015 [where a party has appeared in the action or proceeding through an attorney, “the service of papers, when required, must be upon the attorney instead of the party, except service of subpoenas, of writs, and other process issued in the suit, and of papers to bring the party into contempt”]; see also <i>Edward W. v. Lamkins</i> (2002) 99 Cal.App.4th 516, 529 [fundamentals of due process require notice and an opportunity to be heard].) “Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing.” (Cal. Rules of Court, rule 3.1300(c).) Defendant is ORDERED to do the following by no later than Friday June 5, 2026, at 4:00 p.m.: (1) serve all moving papers on plaintiffs’ counsel; and (2) file a proof of service of the moving papers with the court (see, e.g., Judicial Counsel of California Form POS-040 or POS-050 [proof of service forms approved for optional use]). The Order to Show Cause re: Dismissal (Default Judgment) scheduled for June 11, 2026, is DISCHARGED and that hearing will go off calendar. This motion is CONTINUED to July 10, 2026, at 9:30 a.m. in Department C12. The Court will also schedule a Case Management Conference on that same date and time. Clerk shall give notice.
7.	Xu vs. EQUITATION ROYALE LLC 25-01535570	Motion Permitting Service of Summons and First Amended Complaint Plaintiffs John Kim and Christine Ting Xu’s motion to effectuate the service of the summons and amended complaint via the California Secretary of State as to defendants Airlink Global LLC and Equitation Royale LLC is granted. Plaintiffs have demonstrated “reasonable diligence” by “set[ting] forth facts detailing all attempts to serve the defendant by each of the

		methods prescribed by statute, including facts demonstrating why each method was unsuccessful at every address or location where the defendant is likely to be found.” (Code Civ. Proc., § 413.30, subd. (a)(2).) See declarations of plaintiff Kim, process server Hernandez and investigator Candias. Plaintiffs may serve the summons and amended complaint, along with a copy of this order, on the California Secretary of State. Service shall be completed within 30 days after delivery to the Secretary of State. Ca. Corp. Code section 17701.16. The Court finds this motion (ROA 63) and the one set for May 29, 2026, (ROA 66) are virtually IDENTICAL. Based on the ruling on this motion (ROA 63), the Court now takes the motion set on May 29, 2026, (ROA 66) OFF CALENDAR. The Case Management Conference is CONTINUED to December 17, 2026, at 9:30 a.m. in Department C12. Clerk to give notice.
8.	Velocity Investments, LLC vs. Villegas 24-01433786	1. Motion to Quash (Service of Summons) 2. Case Management Conference Defendant Frank Villegas’s Motion to Quash Service of Summons and the Case Management Conference were both CONTINUED to August 7, 2026, at 9:30 a.m. in Department C12.
9.	M&Y Personal Injury Lawyers vs. Solution Law APC 25-01517436	1. Motion for Judgment on the Pleadings 2. Case Management Conference Defendant Solution Law, APC’s motion for judgment on the pleadings is DENIED. (Code Civ. Proc., § 438 [authorizing motion].) <u>1st cause of action: common counts.</u> This cause of action states sufficient facts to allege a common count for money had and received. (<i>Farmers Ins. Exchange v. Zerin</i> (1997) 53 Cal.App.4th 445, 460 [“A cause of action for money had and received is stated if it is alleged the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff’”]; <i>Quelimane Co., Inc. v. Stewart Title Guar. Co.</i> (1998) 19 Cal.4th 26, 38-39 [complaint is good against a general demurrer so long as the essential facts of some valid cause of action are alleged]; Complaint, ¶¶ 5-8 [plaintiff’s

alleged entitlement to some portion of settlement funds], 11 [moving party's receipt of funds]; Exs. A and B to Complaint, §§ 3 [contingency fee agreement], 4 [client's agreement to pay contingency fee], 6 [lien on "the proceeds of any award, verdict, recovery, and/or settlement"]; see also *Utility Audit Co., Inc. v. City of Los Angeles* (2003) 112 Cal.App.4th 950, 958 ["A claim for money had and received can be based upon money paid by mistake, money paid pursuant to a void contract, or a performance by one party of an express contract"].)

2nd cause of action: breach of fiduciary duty.

This cause of action states sufficient facts. (*LaMonte v. Sanwa Bank California* (1996) 45 Cal.App.4th 509, 517 [elements]; *Johnstone v. State Bar* (1966) 64 Cal.2d 153, 155-156 ["When an attorney receives money on behalf of a third party who is not his client, he nevertheless is a fiduciary as to such third party ... the funds in his possession are impressed with a trust, and his conversion of such funds is a breach of the trust"]; Complaint, ¶¶ 5-8 [plaintiff's alleged entitlement to portion of settlement funds], 11 [moving party's receipt of funds, creating duty], 18 [breach], 19-20 [proximately caused damages].)

3rd cause of action: breach of contract.

This cause of action is not alleged against this moving party.

4th cause of action: declaratory judgment.

This cause of action states sufficient facts. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2002) 82 Cal.App.4th 592, 605; Complaint, ¶¶ 5-8 [plaintiff's alleged entitlement to portion of settlement funds], 11 [moving party's receipt of funds], 29-30 [seeking declaratory relief as to "the amounts due and owing to M&Y" and moving party's duties as successor counsel].)

Plaintiff's counsel has represented to the Court that Motions to Dismiss will be forthcoming as to Defendants Dania Soto-Beltran and Kirsten Worrells.

Based on that representation, the Court now VACATES the Case Management Conference and this matter is scheduled for a Jury Trial on August 13, 2027, at 11:00 a.m. in Department C12. Jury fees are to be paid within 5 days. If jury fees are not timely paid, the jury trial will be converted to a COURT trial.

Plaintiff shall give notice.

10.	National Funding, Inc. vs. Westland Campers, Inc. 25-01514351	1. Motion for Summary Judgment and/or Adjudication 2. Case Management Conference Plaintiff National Funding, Inc.’s Motion for Summary Judgment is DENIED. (Code Civ. Proc. §437c, subd. (p)(1).) Plaintiff has failed to meet its initial burden to show it is entitled to summary judgment. Defendant’s Request for Judicial Notice is GRANTED. (Evid. Code §452, subd. (d) [court records].) The Court takes judicial notice of the fact that the request for dismissal in the prior action was filed on 6/23/25. Defendant’s evidentiary objection is OVERRULED. Code Civ. Proc. § 437c(p)(1) sets forth a plaintiff’s burden when moving for summary judgment. It provides: “A plaintiff or cross-complainant has met his or her burden of showing that there is no defense to a cause of action if that party has proved each element of the cause of action entitling the party to judgment on that cause of action. Once the plaintiff or cross-complainant has met that burden, the burden shifts to the defendant or cross-defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto. The defendant or cross-defendant may not rely upon the mere allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to that cause of action or a defense thereto.” ““[W]hen a plaintiff moves for summary adjudication, the plaintiff meets his or her burden of showing that there is no defense to a cause of action if the plaintiff proves each element of the cause of action entitling the party to judgment on the cause of action. When plaintiffs bear the burden of proof by a preponderance of evidence at trial, they must present evidence that would require a reasonable trier of fact to find any underlying material fact more likely than not—otherwise, they would not be entitled to judgment as a matter of law, but would have to present their evidence to a trier of fact. If the plaintiff meets their burden, the defendant must set forth specific facts showing a triable issue of material facts exist.” (<i>Campbell v. FPI Management, Inc.</i> (2024) 98 Cal.App.5th 1151, 1162.) Plaintiff moves for summary judgment of its cause of action for breach of contract. The elements for a cause of action for breach of contract are: “(1) the existence of the contract, (2) plaintiff’s
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		performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to the plaintiff.” (<i>Oasis West Realty LLC v. Goldman</i> (2011) 51 Cal.4th 811, 821.) Plaintiff fails to meet its initial burden to establish Plaintiff’s performance or excuse for nonperformance of the contract it seeks to enforce. The only evidence provided is the conclusory statement from the declaration of Sandra Otero asserting that “National Funding has performed all conditions and promises required to be performed on the its part under the terms of the Settlement Agreement.” (ROA 18, ¶8.) Even if this was sufficient to meet Plaintiff’s initial burden on summary judgment, Defendant has established a triable issue of fact as to this element. Defendant has shown that Plaintiff was required to file a dismissal of the prior action within 10 days of receipt of the third payment. Defendant has shown that Plaintiff did not file the dismissal until 28 days after the third payment was made. Plaintiff argues it is nevertheless entitled to summary judgment because Plaintiff substantially complied with its obligations under the agreement. But the very authority Plaintiff relies upon recognizes that determination of substantial performance is a question of fact. (See <i>Magic Carpet Ride LLC v. Rugger Investment Group, LLC</i> (2019) 41 Cal.App.5th 357, 364.) Since Plaintiff has not shown that the undisputed facts establish that Plaintiff substantially performed its own obligations under the settlement agreement, it has not met its initial burden to prove each element of its cause of action for breach of contract. Accordingly, Plaintiff is not entitled to summary judgment. The Court now VACATES the Case Management Conference and sets this matter for a COURT TRIAL on April 23, 2027, at 11:00 a.m. in Department C12. Moving Party shall provide notice.
11.	Reese vs. Day 25-01469806	1. Demurrer to Amended Complaint 2. Motion to Compel Answers to Form Interrogatories 3. Motion to Compel Answers to Special Interrogatories 4. Motion to Compel Production 5. Motion to Deem Facts Admitted 6. Case Management Conference 7. Order to Show Cause re: Dismissal (Failure to Serve) On April 17, 2026, Plaintiff’s counsel filed a Notice with the Court advising the Court of Plaintiff’s recent passing. ROA 119.

	In that document, Plaintiff’s counsel asked the Court to take the Demurrer (and impliedly all other future motions) OFF CALENDAR and stay all current case deadlines pending the filing of a formal Motion for Substitution of Plaintiff pursuant to Code of Civil Procedure section 377.31. Plaintiff’s counsel stated they were attempting to contact the family/heirs of the Plaintiff to identify the proper successor in interest to proceed with this lawsuit. The Court continued the pending Demurrer to May 22, 2026, (ROA 126) to join the current discovery motions. The Court was mindful that a mere one-month continuance might not be enough time to identify a successor in interest. In the interim, Plaintiff’s counsel filed a Motion to be Relieved as Counsel. The Court is unwilling at this time to relieve Plaintiff’s counsel without the decision about a Substitution of Plaintiff having been made. The Court now takes ALL MOTIONS including the Demurrer, the discovery motions AND the June 12, 2026, Motion to be Relieved as Counsel OFF CALENDAR and STAYS this case as originally requested by Plaintiff’s counsel in ROA 119. The CMC and OSC re: Dismissal (Failure to Serve Fred Day) is also taken OFF CALENDAR. The Court now calendars an OSC re: Stay of Case (Status of Successor in Interest) for October 22, 2026, at 9:30 a.m. in Department C12. A Status Report shall be filed by Plaintiff’s counsel before October 8, 2026. Clerk to give notice.
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